

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection were observed, leading to the initiation of actions under file number EXP202308425.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (LOPDGDD hereinafter).

In the framework of the investigative actions, two requests for information were sent to OVH HISPANO, S.L.U., with NIF B83834747, regarding the complaint indicated in the first section, requesting that, within ten working days, it submit to this Agency the information and documentation specified therein. These requests were recorded as sent on July 24, 2023, and August 29, 2023.

THIRD: The requests for information were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic means. The first of them was received by OVH HISPANO, S.L.U. on July 25, 2023, while the second, a reiteration of the first, was received on August 29, 2023, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, OVH HISPANO, S.L.U. did not submit any response to this Spanish Agency for Data Protection within the deadlines granted for this purpose.

FIFTH: According to the report obtained from the AXESOR tool, the entity OVH HISPANO, S.L.U. is an SME established in 2003 with a business volume of 30,077,990 euros in 2021.

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SIXTH: On April 9, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against OVH HISPANO, S.L.U., in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: The aforementioned initiation agreement was received by OVH HISPANO, S.L.U. on April 9, 2024, as evidenced by the acknowledgment of receipt in the file.

EIGHTH: On April 19, 2024, a written request was submitted, registered under entry number REGAGE24e00028841391, in which OVH HISPANO, S.L.U. requests an extension of the initially granted deadline for submitting allegations. This Agency agreed to extend the deadline for submitting allegations by a maximum of five days, calculated from the day following the end of the first deadline for allegations.

NINTH: On April 23, 2024, and under entry registration number REGAGE24e00029756714, OVH HISPANO, S.L.U. submitted allegations to the initiation agreement of the present sanctioning procedure in which it states that “the National Commission for Informatics and Liberties (CNIL) contacted the parent company to request the same information that was being requested by the AEPD from the Spanish subsidiary. According to the email chain exchanged between the OVH parent company and the CNIL, which is attached as Annex I to this document, the French control authority informs that its Spanish counterpart had contacted it because it could not identify the publisher of the website aficionis.com, a domain that was acquired from OVH, expressly requesting that the contact details of the owner of said domain be provided to the CNIL to assist the AEPD (...). As a result of this

request, the OVH parent company responded to the CNIL providing the requested information (...). From the exchange of these emails, it is evidenced that the company OVH responded to the CNIL by providing the information requested by the AEPD in the actions under file number EXP202308425, making itself available to both agencies. It follows irrefutably, therefore, that the company OVH responded to the AEPD's request through the CNIL's request for information to its parent company, with the AEPD being in contact with this agency regarding the referenced file and, furthermore, being aware of our collaboration with the French authority, as can be inferred from the following emails exchanged between the OVH parent company and the CNIL, which are included in Annex I: "[...] As part of our ISO27701 certification and the data processing agreements with our clients, we commit to inform them in advance of any request for access to their personal data by an Authority.

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"Do you know if the AEPD authorizes us to do this in this case?" (Email sent by OVH to the CNIL).

(...)

(Second response issued by the CNIL)

(...)

Good morning, madam

We have heard from our Spanish counterparts, and they have agreed that you must inform your client in advance."

In conclusion, OVH responded in good faith by providing the requested information, without being culpable of "obstructing" the investigative powers of the AEPD within the scope of its sanctioning powers, as it was aware, or should have been aware, of the information that the parent company provided to the CNIL by virtue of the duty of cooperation between the supervisory authorities."

In a subsidiary manner to the above, OVH HISPANO, S.L.U., in relation to articles 70 and 72.1 of the LOPDGDD and 58.1 of the GDPR, states that "it is understood that OVH cannot be considered as a passive subject as it does not fit into any of the figures subject to the sanctioning regime referred to in the framework of the actions taken by the General Sub-Directorate of Inspection initiated against an unidentified third party, who is actually the data controller in the context of file number EXP202308425. It is evident that, in this case, the duty of collaboration was not related to the processing of data for which my client is responsible or designated, but rather, with a generic duty of collaboration with public authorities that any other individual may have, by virtue of Article 18 of Law 39/2015, and which, as previously indicated, was fulfilled in good faith through the CNIL."

For all the above reasons, OVH HISPANO, S.L.U. requests that "the FILE OF THE PROCEDURE be declared concerning OVH HISPANO, S.L.U. for having responded to the company's information requests in accordance with data protection regulations and, subsidiarily, for OVH not being a subject susceptible to being sanctioned in accordance with data protection regulations."

TENTH: On October 22, 2024, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection agree to file the EXP202403439 case against OVH HISPANO, S.L.U.

Additionally, the procedure was made known so that within ten days OVH HISPANO, S.L.U. could state whatever it deemed appropriate in its defense and present the documents and information it considered pertinent, in accordance with Article 89.2 of the LPACAP.

ELEVENTH: The resolution proposal was notified in accordance with the rules established in the LPACAP via electronic notification, being received by OVH HISPANO, S.L.U. on October 22, 2024, as evidenced by the acknowledgment of receipt in the file.

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After the ten working days granted in the resolution proposal for the submission of allegations, OVH HISPANO, S.L.U. has not submitted any allegations.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

FIRST: The information requests indicated in the second and third antecedents were notified in accordance with the provisions of the LPACAP.

SECOND: OVH HISPANO, S.L.U. did not respond to this Agency's information requests made within the framework of the investigation actions in file EXP202308425 within the time limits granted for this purpose.

THIRD: From the documents provided by OVH HISPANO, S.L.U. in its allegations to the initiation agreement of the present procedure, it is confirmed that this entity responded to the request for information from the French data protection authority (CNIL) on November 13, 2023, in order to respond to this Agency's request.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Filing

Article 89 of the LPACAP provides as follows:

"1. The instructing body shall resolve the termination of the procedure, with the filing of the actions, without the need for the formulation of the resolution proposal, when it is evident in the instruction of the procedure that any of the following circumstances exist:

a) The non-existence of the facts that could constitute the infringement.

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b) When the facts are not proven.

c) When the proven facts do not manifestly constitute an administrative infraction.

d) When there is no person or persons responsible identified, or when they appear to be exempt from liability.

e) When it is concluded, at any time, that the infraction has expired.

2. In the case of sanctioning procedures, once the instruction of the procedure is concluded, the instructing body shall formulate a proposal for resolution that must be notified to the interested parties. The proposal for resolution must indicate the disclosure of the procedure and the deadline for submitting allegations and presenting the documents and information deemed pertinent.

In the present case, in light of the facts presented, it is considered that OVH HISPANO, S.L.U., although out of time, has responded to the requests made by this Agency before the initiation agreement of the present sanctioning procedure was issued, which leads to the conclusion of the non-existence of the fact that constituted the infraction. Consequently, it is appropriate to agree to archive the procedure.

Therefore, in accordance with the above, the Director of the Spanish Agency for Data Protection
RESOLVES:

FIRST: TO ARCHIVE the sanctioning procedure of file number EXP202403439.

SECOND: TO NOTIFY this resolution to OVH HISPANO, S.L.U., with NIF B83834747.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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